

26NWLC28821 26NWLC28821

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-22

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Case Number: 26NWLC28821 Hearing Date: July 22, 2026 Dept: Y

26NWLC28821: WELLS FARGO BANK, N.A. vs DANIEL FONDA

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Daniel Fonda ("Defendant"), including the supporting declaration. It is unclear whether Defendant's Motion to Quash Service of Summons ("Motion") has been served on Plaintiff Wells Fargo Bank, N.A. ("Plaintiff"). Although there is a Proof of Service included with Defendant's Motion, it is unsigned and undated. Additionally, Defendant did not file a signed Proof of Service of the Motion with the Court and no opposition has been filed by Plaintiff.

Code of Civil Procedure section 1005 requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing. . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and place of address are within the State of California." It is unclear whether proper notice of the motion has been given.

The Court continues the hearing on the Motion to August 20, 2026 at 10:30 a.m. in Dept. Y so that proper notice of the motion can be given to Plaintiff.

Defendant is ordered to serve a copy of his Motion on counsel for Plaintiff and file Proof of Service. To the extent the Motion was served on counsel for Plaintiff, Defendant may file a signed and dated Proof of Service.

Clerk to give notice.